



SPONSOR: Rep. Bush & Sen. Hoffner

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 235

AN ACT TO AMEND TITLE 3 OF THE DELAWARE CODE RELATING TO COMPOSTING.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Title 3 of the Delaware Code by making deletions as shown by strike through and insertions as
2 shown by underline as follows:

3 § 108. Composting.

4 (a) The diversion and composting of yard waste, food residuals, and other organic materials for commercial
5 purposes shall be allowed on properties zoned for agricultural purposes.

6 (b) County and local governments may limit the square footage for such use but shall allow for no less than 5000
7 sq ft. per 4 acres of property.

8 (c) The Department of Agriculture may create regulations for the purposes of this section.

SYNOPSIS

This Act allows for the composting of yard waste, food residuals and other organic materials on property zoned for agricultural purposes.